

aides and assistants.”⁴ *Id.*, at 616. These words reflect the precise analysis of *Gravel*, and this analysis applies with at least as much force to a President. The primary layer of senior aides of a President—like a Senator’s “alter egos”—are literally at a President’s elbow, with offices a few feet or at most a few hundred feet from his own desk. The President, like a Member of Congress, may see those personal aides many times in one day. They are indeed the President’s “arms” and “fingers” to aid in performing his constitutional duty to see “that the laws [are] faithfully executed.” Like a Member of Congress, but on a vastly greater scale, the President cannot personally implement a fraction of his own policies and day-to-day decisions.⁵

For some inexplicable reason the Court declines to recognize the realities in the workings of the Office of a President, despite the Court’s cogent recognition in *Gravel* concerning the realities of the workings of 20th-century Members of Congress. Absent equal protection for a President’s aides, how will Presidents be free from the risks of “intimidation . . . by [Congress] and accountability before a possibly hostile

⁴In the early years of the Republic, Members of Congress and Presidents performed their duties without staffs of aides and assistants. Washington and Jefferson spent much of their time on their plantations. Congress did not even appropriate funds for a Presidential clerk until 1857. Lincoln opened his own mail, Cleveland answered the phone at the White House, and Wilson regularly typed his own speeches. S. Wayne, *The Legislative Presidency* 30 (1978). Whatever may have been the situation beginning under Washington, Adams, and Jefferson, we know today that the Presidency functions with a staff that exercises a wide spectrum of authority and discretion and directly assists the President in carrying out constitutional duties.

⁵JUSTICE WHITE’s dissent in *Nixon v. Fitzgerald* today expresses great concern that a President may “cause serious injury to any number of citizens even though he knows his conduct violates a statute . . .” *Ante*, at 764. What the dissent wholly overlooks, however, is the plain fact that the absolute immunity does not protect a President for acts *outside* the constitutional function of a President.